



Flipkart



MEMORANDUM OF UNDERSTANDING

Between

ODOP Cell

and

Flipkart Internet Private Limited

This Memorandum of Understanding (this "MoU") is entered into on 07/08/2020 by and between:

- (1) **ODOP Cell**, a nodal body for the implementation of the ODOP Program, under Directorate of Industries, Government of U.P. and having its office at First Floor, Niryat Bhawan, 8 Cantt Road, Qiserbagh, Lucknow.
- (2) **Flipkart Internet Private Limited** having its registered office at Buildings Alyssa, Begonia & Clove Embassy Tech Village, Outer Ring Road, Devarabeesanahalli Village, Bengaluru, 560103, Karnataka, India ("Counterparty");

ODOP Cell and Counterparty may hereinafter be referred to as a "Party" and collectively, the "Parties".

1. POTENTIAL COLLABORATION

- 1.1. Flipkart Group shall offer curated schemes (pricing and other benefits), tailored for the ODOP Cell, to enable the chosen ODOP Artisans / Manufacturers / Traders of UP to have access to buyers through its e-commerce platform i.e. www.flipkart.com / mobile app.
- 1.2. Flipkart Group shall conduct trainings & workshops for ODOP Artisans / Manufacturers / Traders in the pre-decided districts, facilitated by the ODOP cell where ODOP Cell at its own cost shall arrange for all the necessary infrastructure to conduct such trainings & workshops in respective districts.
- 1.3. Flipkart Group, through its channel partner network, shall assist ODOP Artisans / Manufacturers / Traders with the process of signing-up on the portal (www.flipkart.com) and provide support through onboarding procedures and getting their account activated.
- 1.4. Flipkart Group shall make reasonable efforts to participate in ODOP State / Regional Summits or any other media event facilitated and advised by the ODOP Cell.
- 1.5. Flipkart Group shall make reasonable efforts to invite ODOP Cell and ODOP Artisans / Manufacturers / Traders (relevant) to appropriate events & forums- National & International, to enhance exposure and offer additional visibility.
- 1.6. Flipkart Group shall offer relevant ODOP branding and success stories of the MoU on its various social media platforms, as per mutual understanding of both parties.
- 1.7. ODOP Cell to facilitate and ensure that the benefits of UP Government's ODOP MDA Scheme are extended and provided to Flipkart Group's prospective sellers (ODOP Artisans / Manufacturers / Traders).
- 1.8. Both parties shall share relevant progress reports pertaining to performance of ODOP Artisans under on a monthly basis.
- 1.9. Both parties to have quarterly/half yearly meetings to review the success of trainings, seminars and workshops conducted by Flipkart Group. This shall not preclude any other meetings, as desired so by the parties, mutually.



- 1.10. ODOP Cell to provide a direct link for ODOP Artisans / Manufacturers / Traders visitors to reach Flipkart Group website (www.flipkart.com).
- 1.11. Flipkart Group shall manage the adequate publicity of the news of MoU Signing event as per mutual understanding of the parties.
- 1.12. Flipkart Group to promote ODOP Brand on its platform www.flipkart.com and mobile app through the Flipkart & Flipkart Samarth page by providing a hyperlink, on a click it shall take users to the ODOP Products (All categories listed).
- 1.13. Flipkart Group to give a brief about the ODOP Program (i) on the ODOP Product Categories page (www.flipkart.com & Flipkart Samarth).
- 1.14. Flipkart Group to keep key words and listings updated, for an easy search of ODOP listed products.
- 1.15. Each ODOP Product/s listed from U.P. should mandatorily have the word ODOP written with it.
- 1.16. Flipkart shall provide ODOP Product promotion through relevant media , both online and offline, as per mutual understanding of the parties. Example: Online / Offline banners (Online – Pop -up adds or banners on websites ; Offline – In print media)

2. **NON-BINDING**

The Parties acknowledge and agree that, save for this Clause, Clauses 3 (Confidentiality), 4 (Publicity), 5 (Intellectual Property), 6 (Term and Termination), 7 (Counterparts) and 8 (Third Party Rights), this MoU is intended to be legally binding & sets out the understandings reached by the Parties with respect to the Collaboration set forth in Clause 1 (Potential Collaboration). The understandings reached by the Parties in this MoU shall comprise only a general scope of rights and obligations of each Party and the specific scope, initiatives, terms and conditions, and deliverables of the collaboration shall be further discussed, agreed and confirmed by the Parties by way of definitive or supplemental agreement(s) superseding this MoU.

3. **CONFIDENTIALITY**

“**Confidential Information**” means the terms of this MoU and all information concerning the Parties or any Party to which another Party is provided access by virtue of its activities as a result of this MoU. Confidential Information does not include information that has been publicly disseminated in writing by the owner, in which the receiving Party can show it knew prior to disclosure, or which was rightfully received by a Party from a third Party without restriction. Confidential Information acquired hereunder by a Party will be treated as proprietary information of the disclosing Party and shall not be used for any purpose other than the collaborations between the Parties or disclosed to any third Party, except such Party’s professional advisers, affiliates, consultants, or its employees on a “need to know” basis. No Party shall, without the prior written consent of the disclosing Party, make any public announcement or issue any press release disclosing Confidential Information, provided that any Party may make any disclosure required, in the opinion of its legal counsel, by applicable laws or regulations.



4. **PUBLICITY**

The Parties agree that, unless expressly agreed to and approved in advance by both Parties, no Party shall make any public announcements or press releases with respect to the relationship or collaboration between the Parties created by this MoU.

5. **INTELLECTUAL PROPERTY**

Nothing contained in this MoU shall be construed as granting or conferring, whether by sale, license or otherwise, to a Party (or any of its representatives) any right, title or interest in or to Intellectual Property Rights of the other Party or its affiliates, related parties or licensors. For the purpose of this MoU, "Intellectual Property Rights" shall mean all rights in inventions, patents, trademarks, service marks, trade names, copyrights, data rights, database rights, design rights, domain names, trade secrets, know-how and other intellectual property rights (whether registered or unregistered) and all applications for any of them, anywhere in the world.

Each Party grants to the other a nonexclusive, non-transferable, royalty-free right to display/usage of such Party's respective trademarks, service marks, and logos (the "Trademarks"), for the purposes of this MoU. Neither Party shall acquire any rights of ownership to any copyrights, patents, trade secrets, trademarks or other intellectual property of the other Party. On termination of this MoU, each Party shall cease using the Trademarks of the other Party.

6. **TERM AND TERMINATION**

- 6.1. The Parties agree that this MoU can be terminated on the ground of non-execution by any Party or by mutual consent.
- 6.2. Subject to earlier termination in accordance with Clause 5.1, this MoU shall take effect from the date first above written and remain valid for (a) one (1) year, or (b) until the date the Parties have entered into the relevant definitive agreement(s) which supersedes this MoU.

7. **COUNTERPARTS**

This MoU may be signed in counterparts, each of which shall be deemed an original and all of which shall constitute one and the same instrument. This MoU may also be signed and transmitted by e-mail, as a scanned image or PDF, with such signature to be treated as an original and the document transmitted to be considered to have the same binding effect as an original signature on an original document.

8. **NO THIRD-PARTY RIGHTS**

Nothing in this MoU, express or implied, is intended to confer upon any person, other than the Parties hereto and their respective successors and assigns, any rights or remedies under or by reason of this MoU, except that the Parties agree that in the event of any enforcement of its rights under this MoU by ODOP Cell, such action may be instituted by ODOP Cell.



IN WITNESS whereof, the Parties below have executed this MoU on the afore mentioned day and year.

Signed for and on behalf of

Signed for and on behalf of



Name: Shri Navneet Sehgal, IAS
Title: Principal Secretary,
• MSME & Export Promotion
Uttar Pradesh



Name: Shri Rajneesh Kumar
Title: Chief Corporate Affairs Officer
Flipkart Group

WITNESS

1)

2)



Shri Sunil Kumar,
Joint Commissioner Industries,
Directorate of Industries,
Uttar Pradesh



Shri Hasan Yaqoob
Govt. Relations,
Flipkart